



JAMAICA CONSTABULARY FORCE Public Procurement Manual

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JAMAICA CONSTABULARY FORCE

PUBLIC PROCUREMENT MANUAL



Message from the Commissioner of Police

Dear Colleagues,

As we continue our steadfast journey toward a safer Jamaica, every decision we make, every resource we allocate and every policy we implement carries with it the weight of our collective responsibility. The development of our internal procurement manual stands as a testament to our commitment, not only to uphold the law but to enact our everyday duties with unwavering integrity and efficiency.

In the dynamic landscape of law enforcement, marked significantly by technological advancements, our operations must evolve accordingly. It is with this in mind that I endorse our internal public procurement manual, a strategic framework that aligns seamlessly with both the Government of Jamaica's standards and the unique operational demands of our Force.

This manual articulates our dedication to transparency, accountability and value for money. It is designed to optimize our resource management, ensuring that every dollar spent furthers our ability to protect and serve. As we implement this manual, it is imperative that each member of the JCF, regardless of rank or role, embraces the principles it espouses.

We are privileged to serve at a time when the potential for positive impact is boundless. Nevertheless, the path we tread is fraught with challenges, many of which demand immediate and unequivocal solutions. Balancing compliance with the Government of Jamaica's guidelines against our operational needs will require a level of diligence and dedication that I know to be characteristic of this Force.

I encourage each one of you to approach this manual not as a mere set of directives but as a guideline for operational excellence. It is a tool that, when utilized effectively, will enhance our efficiency, bolster our integrity and most importantly, improve our service to the people of Jamaica.

Let us move forward with a clear understanding of the gravity of our responsibility and the role that effective procurement management plays in fulfilling our mission. Together, we will continue to make strides in law enforcement, safeguarding the well-being of our nation and its citizens.



The Jamaica Constabulary Force Procurement Manual

Respectfully,

Dr. Kevin Blake
Commissioner of Police
Jamaica Constabulary Force



Preface

In an era marked by rapid technological advancement and increasing demands for effective law enforcement, the Jamaica Constabulary Force (JCF) stands at the forefront of safeguarding the nation's security. Our mission to serve, protect and reassure the people of Jamaica, requires not just valor and dedication but also the strategic and judicious use of resources. The dynamic landscape of public procurement within which the JCF operates is guided by stringent legislation and ethical mandates, necessitating a manual that is both robust and responsive to the complex needs of modern policing.

This internal Public Procurement manual is a testament to our commitment to uphold the highest standards of integrity, transparency and accountability in every aspect of our operations. Developed in the spirit of strategic foresight and adherence to the Government of Jamaica's (GoJ) regulations, this manual is designed to ensure that the JCF not only meets its operational and administrative goals but also contributes to the broader national objectives of economic efficiency and public trust.

The manual is grounded in the principles of increased transparency, achieving best value for money, fostering trust and excellent corporate relationships, ensuring the timely delivery of goods and services and strict adherence to the GoJ Public Procurement Act, 2015, Public Procurement Regulations, 2018 and related guiding documents. These areas of focus are not arbitrary but are deeply intertwined with the operational success and the integrity that the JCF aims to maintain in every facet of its endeavours.

The JCF's annual procurement spend, which significantly impacts the Jamaican economy, underscores the strategic importance of this manual. With over eight billion dollars allocated in the fiscal period of 2021/2022 to 2023/2024, the procedures for procurement methodology, evaluation criteria, selection of contractors and award of contracts demand rigorous scrutiny and efficiency. The JCF, through the careful execution of this manual, will not only procure the necessary tools and resources to fight crime effectively but will also set a standard for excellence in public procurement practices within Jamaica.

The inclusion of Guidance Note 1/2020 from the Public Procurement Commission within this manual serves to underscore our commitment to align with the latest standards and criteria for awarding contracts. This ensures that all stakeholders, particularly those directly involved in procurement



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activities, are well-informed and adequately equipped to engage in procurement processes that are fair, competitive and reflective of our collective aspiration for a safer Jamaica.

As we implement this manual, we recognize the importance of continuous learning, adaptation and collaboration. The success of the JCF's Public Procurement manual hinges not just on the adherence to rules and protocols but on the collective resolve of every member of our Force to act responsibly, ethically and with the utmost dedication to our nation's wellbeing.

This manual, therefore, is more than a framework for procurement; it is a declaration of our unwavering commitment to operational excellence, institutional integrity and the fostering of a secure, just and prosperous Jamaica. We invite all stakeholders, both within and outside the JCF, to join us in this critical endeavor as we forge ahead, guided by the principles of transparency, accountability and the relentless pursuit of making the Jamaican society secure, cohesive and just.



PROCUREMENT

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SECTION 1

Introduction

The Government of Jamaica Public Procurement Act, 2015 (herein referred to as "the Act"), the Public Procurement Regulations, 2018 (the Regulations), and the Procurement Handbook of Public Sector Procurement Procedures Handbook serve as the authoritative guides for public procurement in Jamaica. These legal documents establish the legal and regulatory framework, directing all procuring entities to comply with the provisions contained within them.

Definition of Key Terms:

No.	Key Term	Definition
1	Approved Registered Supplier	A person, firm or entity registered under section 16 of the Act
2	Approved Unregistered Supplier	A person, firm or entity approved by the Commission under section 18 of the Act
3	Award Of Contract	A notice of the award of the procurement contract or the framework agreement under section 45 the Act
4	Bid	A response to an invitation to bid issued by the Jamaica Constabulary Force (JCF), including a tender, a proposal, a quotation and a bid from a bidder
5	Bidder	A supplier who submits a bid
6	Eligible Bidder	A person, firm, entity eligible to participate in a public procurement process in accordance with section 32 of the Act.
7	Bidding Documents	The standard form bidding documents developed by the Office for use in public procurement proceedings and all amendments made to the document for the purposes of a procuring entity and documents attached or incorporated by reference, that individually and collectively-



No.	Key Term	Definition
		(a) invite bids; (b) establish the objects of a bid; (c) specify the conditions of a proposed procurement contract; (d) establish the applicable bidding procedures;
8	Commission	The Public Procurement Commission established by section 9 the Act
9	Contractor	A bidder to whom a procurement contract has been awarded by a procuring entity
10	Framework Agreement	An agreement between one or more procuring entities and one or more selected suppliers establishing certain key commercial elements that shall apply to contracts to be awarded pursuant thereto
11	Goods	a. hinges of every kind and description, whether tangible or intangible, including- i. commodities, agricultural crops, raw materials, products and equipment; ii. matter in solid, liquid or gaseous form; b. services incidental to the supply of such things;
12	International Competitive Bidding	A procurement method that does not restrict the participation of any supplier
13	Invitation to Bid	Means a written communication to one or more suppliers inviting them to submit bids for the supply of goods, works or services
14	National Bidder	A bidder who is a supplier and is a national of or a body incorporated in Jamaica
15	National Competitive Bidding	A procurement method that is limited to approved registered suppliers
16	Open Framework Agreement	A framework agreement to which a supplier may become a party subsequent to the conclusion of the agreement by the initial parties



No.	Key Term	Definition
17	Pre-Qualification	Means the screening by a procuring entity of suppliers in which such factors as financial capability, technical capacity, reputation and management are considered in order to develop a list of suppliers who may be allowed to submit bids
18	Pre-Qualification Documents	Documents that set out the terms and conditions of pre-qualification proceedings issued by a procuring entity under the regulations for the purposes of section 33 the Act
19	Procurement	The acquisition of goods, works or services by any means, including, where applicable, purchase, rental, lease or hire-purchase, and the acquisition of works, and consulting or other services
20	Procurement Committee	A committee established by the head of a procuring entity under section 21(1) the Act
21	Procurement Contract	The contract between a procuring entity and a contractor resulting from procurement proceedings;
22	Procurement Contract Approval Limit	Means, as appropriate, the Tier 1 Limit, Tier 2 Limit and Tier 3 Limit, respectively, and- (a) The " Tier 1 Limit " is the prescribed maximum value of a procurement contract that a procuring entity is permitted to award with the prior approval only of the head of the procuring entity; (b) The " Tier 2 Limit " is the prescribed maximum value of a procurement contract that a procuring entity is permitted to award with the prior approval of the head of the procuring entity and the Commission, respectively; (c) The " Tier 3 Limit " is the prescribed value of a procurement contract that a procuring entity is permitted to award with the prior approval of the head of the procuring entity, the Commission and the Cabinet;
23	Procurement Method Threshold	A value limit above which a procuring entity requires the approval of the head of the procuring entity to employ a



No.	Key Term	Definition
		particular procurement method;
24	Procurement Proceedings	The process of effecting a public procurement, from the initiation of the process to the award of a contract;
25	Restrictive Bidding	A bidding process in which a limited number of suppliers are invited to bid.
26	Services	Any object of procurement other than goods and works, and includes consulting services
27	Single-Source Procurement	Procurement of goods, works or services from a supplier pursuant to an invitation to bid, without a competitive procurement process
28	Standard Bidding Document	Any form of bidding document prescribed by the regulations
29	Standstill Period	The period not exceeding ten days commencing from the date of dispatch of a notice under section 44(2) the Act or such shorter period as may be specified in the bidding document
30	Supplier	Means a person, firm or entity that is registered under section 16 and is eligible to participate in procurement proceedings under this Act
31	Works	(a) Means the carrying out of any of the following activities, namely, construction, reconstruction, assembly, altering, manufacturing, processing, fabrication, erection, instrumentation, installation, fitting out, improvement, commissioning, demolition, maintenance, repair and renovation involved with building, civil engineering, structural engineering, electrical engineering, mechanical engineering and other engineering and technology projects; and (b) includes goods and services incidental to the carrying out of the activities referred to in paragraph (a).



Establishment of the JCF's Public Procurement Unit

In compliance with the provisions of the Act, the Regulations state: "The specialist procurement unit established by the head of the procuring entity under section 20(b) of the Act shall be responsible for managing and executing procurement proceedings on behalf of a procuring entity."

Furthermore, the Procurement Handbook of Public Sector Procurement Procedures cautions that "Each procuring entity shall establish a specialist core Procurement Unit" in this way; all procurement for the entity shall be channeled through this Unit. Reporting to the Commissioner of Police, the JCF shall have one specialist Public Procurement Unit through which all procurement matters must be channeled.

Moreover, the JCF's Public Procurement Unit shall:

1. Contribute to the planning of the public procurement initiative, considering the procurement needs and the procurement plan of the entity for each financial year.
2. Prepare and submit the annual procurement plan.
3. Make recommendations through the Director, Corporate and Special Services to the Commissioner of Police for the applicable procurement method to be utilized in respect of a particular public procurement.
4. Prepare pre-qualification documents, bidding documents, standard forms of contracts and any other public procurement documents.
5. Assume responsibility for the preparation and giving of notices, the conduct of bidding and the preparation of submissions in accordance with the approval process for the award of a procurement contract.
6. Monitor the implementation of the procurement contract where appropriate.
7. Prepare procurement reports or any other report required relating to a public procurement managed and conducted by the JCF.
8. Establish and maintain a good credit rating with suppliers.
9. Maintain a list of approved suppliers used by the JCF in an appropriate database. The Public Procurement Unit will periodically submit to the Procurement Committee suppliers to be designated as "approved suppliers." The criteria for approval will include but not be limited to:
 - a. Warranty arrangements (if applicable)



- b. Availability of goods and services
 - c. After-sales support capability
 - d. Quality
 - e. Price and discounts offered
 - f. Past performance of the supplier
 - g. Supplier's background
 - h. Credit arrangements and payment terms in keeping with JCF's turnaround times for processing claims
 - i. Financial soundness, including the ability to finance projects being contracted for or provide the appropriate guarantee. The Contractor must not have declared bankruptcy in the past or be in the process of being declared bankrupt.
 - j. Any other criteria dictated by the Public Procurement Committee
10. Maintain a database on suppliers' performance (Contractor Performance and Evaluation Platform to be used).
11. Prior to the processing of Purchase Requisitions, consultations will be made with centralized cost centers or other specialist Branches (such as the Technology Branch for information systems-related purchases) to provide technical inputs regarding the quality and suitability of the goods offered by prospective suppliers.
12. Track and advise on the status of purchase orders.
13. Properly identify transactions and apply appropriate procurement methodology.
14. Manage contracts to ensure the accuracy of claims.
15. Undertake efficient solicitation and evaluation of quotations and tenders.
16. Advise all spending departments on effective purchasing practices.
17. Determine the pre-qualification of suppliers.
- a. Pre-qualification requirements are developed for categories of purchases or for a given transaction commensurate with the complexity, cost, risk and item availability.

Code of Ethics

The Public Procurement Unit's personnel and all other members involved in procurement for and on behalf of the JCF are expected to adhere to the following principles:



- 1) To give first consideration to the objectives and policies of the JCF.
- 2) To strive to obtain the maximum ultimate value for each dollar of expenditure.
- 3) To cooperate with trade and industrial associations, governmental and private agencies engaged in promoting sound business methods.
- 4) To demand honesty in sales representations whether offered verbally, in writing, through advertisements or product samples.
- 5) To not knowingly accept inferior products, false invoices or recommend payments for fictitious companies or overcharges.
- 6) To ensure that the JCF is credited for returned items and not to exploit discounts for personal gain.
- 7) To maintain confidentiality of all sensitive information obtained during duty that could harm national security if disclosed.
- 8) To avoid collusion between employees and suppliers in purchasing decisions.
- 9) To decline personal gifts, money, entertainment or favors from suppliers except for items of nominal value like business diaries or calendars. Any uncertainties regarding gift acceptance should be addressed to the Director of Corporate and Special Services or Director of Public Procurement for clarity.
- 10) To treat all bidders equally in consideration.
- 11) To safeguard JCF's proprietary information acquired in the line of duty from unauthorized disclosure.
- 12) Not to engage in any private business that may compromise impartiality in purchasing matters and to disclose any personal relationships with suppliers to the relevant authorities for approval.
- 13) Personal relationships include blood relatives, partners, members of social organizations and trustees.
- 14) To report any attempted personal inducements by suppliers immediately to the appropriate authorities.



- 15) All individuals are ethically obligated to report unethical conduct by colleagues, bidders, suppliers, or consultants to the appropriate authorities.

Conflict of Interest

A conflict of interest exists when individuals involved in the procurement process have a direct or indirect interest in a proposed bidder that could lead to personal gain or compromise impartial judgment. It is crucial for all staff to declare potential conflicts of interest during bid preparation, evaluation, contract negotiations, management, and payments.

Participation in Public Procurement

Registered and approved unregistered suppliers on the Public Procurement Commission's list of suppliers are eligible to participate in JCF's public procurement activities.

Registration of Suppliers

Any entity desiring to be classified as a supplier for public procurement must apply to the Public Procurement Commission in the specified format. Upon meeting the Commission's requirements, the applicant will be registered and classified as a supplier.

Approved Unregistered Suppliers

In cases where there are no classification criteria prescribed for goods, services, or works required by the JCF, the JCF may involve unregistered suppliers. Approval from the Public Procurement Commission is necessary for engaging such suppliers in procurement activities.

The Procurement Committee

In accordance with the provisions of the Act, the JCF's procurement function falls under the purview of the Director of Corporate and Special Services. However, the Procurement Committee is tasked with reviewing procurement recommendations and advising the Commissioner of Police. This Procurement Committee operates under the guidance of the Procurement Committee Charter attached at Appendix 1.



The Committee is appointed by the Commissioner of Police and should comprise members with executive responsibilities within the Force. As necessary, the Committee may co-opt members possessing specific expertise. The Committee's membership is structured as follows:

1. Chairperson.
2. Senior Financial Management Personnel.
3. Up to six (6) appropriately qualified Senior Officers.
4. Committee Secretary.

In attendance at all Committee meetings shall be the Director, Public Procurement or a Senior Public Procurement Officer. Also in attendance may be:

- Public Procurement Officer(s).
- Any Divisional Head or representative as required for pertinent discussions during meetings.

The Committee is scheduled to convene on a monthly basis or upon the Chair's summons, with no fewer than eight meetings per calendar year. Additionally, at the Chair's discretion, round-robin meetings may be conducted.

The Procurement Committee is responsible for reviewing all procurements that require final approval from the Commissioner of Police. The Commissioner of Police retains the discretion to set limits for the Procurement Committee. However, these limits should not surpass the prescribed threshold specified in Regulation 8.

Quorum

The Committee necessitates a quorum of five members, inclusive of the Chair and the Senior Financial Management Personnel. In the event of a deadlock, the Chair holds a casting vote.

In the absence of the Chair, the Deputy Chair assumes responsibility. If both the Chair and Deputy Chair are unavailable, the Commissioner of Police shall appoint an interim Chair.

No procurements should be initiated if the cost center has exceeded the budget allocation, unless approved otherwise by the Commissioner of Police in consultation with the Director of Corporate and Special Services.



Functions of the Procurement Committee

The JCF Procurement Committee is tasked to:

1. Review and recommend procurement contract awards to the Commissioner of Police.
2. Review bid evaluation reports related to procurement contracts.
3. Maintain accurate records of the Committee's decisions and recommendations.

Standard Procurement Committee Forms

Approval, rejection or deferral of any transaction under consideration must be signified by members of the Procurement Committee through signing and dating the standard submission forms attached to each submission for final approval by the Commissioner of Police. Specific forms are required for procurements done by lots to indicate recommended awardees.

Functionality of the Evaluation Committee

The Evaluation Committee serves as a precursor to the Procurement Committee. Transactions tendered via the Government of Jamaica Electronic Procurement (GOJEP) portal are initially reviewed by the Evaluation Committee to ensure adherence to specifications and evaluation criteria outlined in the bidding documents.

The primary tasks of the Evaluation Committee are as follows:

1. Evaluate bids according to solicitation criteria.
2. Approve, reject or defer evaluation reports.
3. Recommend the preferred bidder.
4. Seek clarifications through the Public Procurement Unit when needed.
5. Maintain strict confidentiality throughout the process.

Members of the Evaluation Committee must be unbiased and disclose any potential conflicts of interest. Fairness, objectivity and confidentiality in the evaluation process are paramount to upholding procurement standards.



Methods of Public Procurement

Procurement Methodology

1. The Procurement Methods established by the Government of Jamaica (GOJ) are:
 - (1) Single Sourcing (SS)
 - (2) Restricted Bidding (RB)
 - (3) National Competitive Bidding (NCB)
 - (4) International Competitive Bidding (ICB)
2. Generally, the National Competitive Bidding Methodology is utilized by the JCF for transparency and to encourage competition and is the default procurement methodology used.
3. Thresholds established by the GOJ usually determine the procurement method to be utilized:

Methodology Table as per Regulations 8.

Category	Value	Procurement Method	TCC and/or PPC	Minimum Days	Manner of Publication
Goods	Exceeding \$60,000,000.00	Open Bidding by NCB	Both	30 days	Electronic procurement system international and local newspapers and magazines
	Exceeding \$10,000,000.00 but less than \$60,000,000.00	Open Bidding by NCB	Both	21 days (8M-60M)	Electronic procurement system, international and local newspapers and magazines
	Exceeding \$5,000,000.00 but less than \$10,000,000.00	RB with not less than 5 suppliers invited	Both	14 days (-M - 8M)	Electronic procurement system, local newspapers and magazines
	Exceeding \$1,500,000.00 but less than \$5,000,000.00	RB with not less than 3 suppliers invited	Both		
	Not Exceeding \$1,500,000.00	Single Source Procurement	Both		
Works	Exceeding \$150,000,000.00	Open Bidding by ICB & NCB	Both	90 days	Electronic procurement system, international and local newspapers and magazines
	Exceeding \$20,000,000.00 but less than \$150,000,000.00	Open Bidding by NCB	Both	30 days (6-M - 150M)	Electronic procurement system, international and local newspapers and magazines
	Exceeding \$10,000,000.00 but less than \$20,000,000.00	RB with not less than 5 suppliers invited	Both	21 days (-M - 60M)	Electronic procurement system, international and local newspapers and magazines
	Exceeding \$2,000,000.00 but less than \$10,000,000.00	RB with not less than 3 suppliers invited	Both	14 days (-M - 8M)	Electronic procurement system, local newspapers, and magazines



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Category	Value	Procurement Method	TCC and/or PPC	Minimum Days	Manner of Publication
	Not Exceeding \$2,000,000.00	Single Source Procurement	Both		
Services	Exceeding \$60,000,000.00	Open Bidding by ICB & NCB	TCC	45 days	Electronic procurement system, international and local newspapers and magazines
	Exceeding \$8,000,000.00 but less than \$60,000,000.00	Open Bidding by NCB	TCC	21 days (–M - 60M)	Electronic procurement system, international and local newspapers and magazines
	Exceeding \$3,000,000.00 but less than \$8,000,000.00	RB with not less than 5 suppliers invited	TCC	14 days (–M - 8M)	Electronic procurement system, local newspapers and magazines
	Exceeding \$1,500,000.00 but less than \$3,000,000.00	RB with not less than 3 suppliers invited	TCC		
	Not exceeding \$1,500,000.00	Single Source Procurement	TCC*		
	Tier 1 Limit	A value not exceeding \$30,000,000			
	Tier 2 Limit	A value exceeding the Tier 1 Limit but not exceeding \$60,000,000.00			
	Tier 3 Limit	A value exceeding the Tier 2 Limit.			
	\$30M - \$60M	Procurement Committee/Commissioner of Police/Public Procurement Commission			
	Above \$60M	Procurement Committee/ Commissioner of Police/Public Procurement Commission/ Cabinet			

4. The Government of Jamaica Electronic Procurement (GOJEP) Platform is to be utilized.
5. The nature and/or threshold of the requisition determines the procurement method.
6. Depending on the nature of the procurement, suppliers are given a minimum of 7, 14, 21, 30, 45 or 90 days to submit a bid as outlined in the Regulations .

Open Bidding

1. The JCF may engage in public procurement by open bidding using:
 - i. International Competitive Bidding (ICB)
 - ii. National Competitive Bidding (NCB)
2. The JCF may, if it appears to be necessary to do so, use a method of procurement other than Open Bidding in the circumstances specified in sections 24 or 25 of the Act and shall:
 - i. Select such other method of procurement as would best accommodate the circumstances of the procurement concerned.
 - ii. To the extent practicable, seek to maximize competition.



3. In such instances, where the estimated value of procurement is lower than the procurement method threshold, a procuring entity may limit participation in open bidding procurement proceedings to national bidders.
4. Where such participation is limited, the limitation shall be stated in the invitation to bid.

Restricted Bidding

The JCF may engage in procurement by means of restricted bidding, where:

1. The goods, works or services to be procured are, because of their highly complex or specialized nature, available from a limited number of suppliers.
2. The time and cost involved in considering many bids would be disproportionate to the estimated value of the procurement.
3. Given the nature of the procurement, it is in the public interest that the procurement should be confidential, and restricted bidding is required to maintain confidentiality.
4. Where there is an urgent need in the public interest for the subject matter of the procurement, whether arising from the occurrence of a catastrophic event or otherwise, making it impractical to use any such other competitive method of procurement because of the time involved in using any such method.

Single-source Procurement

1. The JCF may engage in single-source procurement where:
 - (1) The goods, services or works to be procured are available from a particular approved registered supplier or an approved unregistered supplier only, or a particular supplier has exclusive rights in respect of such goods, works, or services, such that no reasonable alternative or substitute exists, and the use of any other method of procurement would not be practicable.
 - (2) The JCF, having procured goods, works, or services from a contractor, determines that additional supplies must be procured from that contractor for reasons of standardization or because of the need for compatibility with existing goods, works, or services taking into account the effectiveness of the original procurement in meeting the needs of the procuring entity, the limited size of the proposed procurement in relation to the original procurement, the reasonableness of the price and the unsuitability of alternatives to the goods, works or services in question.



- (3) The JCF determines that the use of any other method of procurement is not appropriate for the protection of national security or defense interest of Jamaica.
- (4) The situation is one of emergency or extreme urgency and engaging in any other method of procurement would be impractical because of the time involved in using any such other method.
2. The JCF shall not engage in single-source procurement without the prior written approval from the Commissioner of Police, if the estimated value of the procurement exceeds the procurement method threshold.
3. Where the JCF engages in a single-source procurement, the entity shall invite a proposal or price quotation from a single approved registered supplier or approved unregistered supplier.
4. The JCF shall engage in negotiations with the approved registered supplier or an approved unregistered supplier from which a proposal or price quotation is invited, unless negotiations are not feasible in the circumstances of the procurement concerned.

Framework Agreement(s) – *The Handbook 2014*

The JCF may establish a Framework Agreement (FA) if:

- a) The need for the goods, works and services is expected to arise on a repeated basis during a given period.
- b) By virtue of the nature of the goods, works or services concerned, the need for the goods, works or services may arise on an urgent basis during a given period.
1. The JCF may engage in procurement under an open framework agreement or a closed framework agreement.
2. A framework agreement shall be conducted in two (2) stages:
 - a) The first stage, during which a supplier is invited to be a party to a framework agreement with the JCF.
 - b) The second stage, during which a procurement contract is awarded under the framework agreement to a bidder that is party to that agreement.
3. Framework Agreements may be used to supply off-the-shelf, readily available products.



4. A Framework Agreement is **not** a contract; therefore, quantities and delivery dates cannot be determined in advance. Any “**call-up**” made against an FA represents acceptance, by a purchaser, of the terms and conditions.
5. As such, it is the “**call-up**” which forms the contract that would be submitted for approval by the Head of the Procuring Entity, PPC or Cabinet, as the value warrants.
6. The Bidding Documents shall state that the Procuring Entity does not necessarily intend to enter a contract – that is, currently, or ever. Rather, the intention is merely to establish the best source of a future supply, based upon firm prices and pre-determined conditions over a specified validity period.

Criteria For Establishing Framework Agreements

The following criteria should be satisfied in order to establish a Framework Agreement with a contractor:

- (a) The goods and related services should be clearly identified.
- (b) The goods and related services should be commercially available.
- (c) The prices should be pre-determined and firm.



Examination and Evaluation of Bid

Standard Bidding Documents

The JCF will provide the bidding documents to each person, firm or entity that is eligible to participate in the procurement activity and is duly registered on the GOJEP Platform.

In such instances where pre-qualification proceedings have been engaged in, the JCF shall provide bidding documents to each person, firm, or entity that has been pre-qualified. The bidding documents shall include but are not limited to:

- a. The description of the subject matter of the procurement.
- b. The form and manner in which the bids should be presented.
- c. The bid validity period.
- d. Such provisions for the modification and withdrawal of bids.
- e. The manner, place, and deadlines for presenting bids and where applicable, applications for pre-qualifications.
- f. Such technical, financial, and other criteria as may be relevant to the evaluation of bids in the procurement.
- g. Any other matters as may be prescribed.

Evaluation Criteria

Subsequent to bid closing, in evaluating and determining the successful bid, the JCF shall:

- (1) Use only those criteria and procedures set out in the bidding documents.
- (2) Apply those criteria and procedures in the manner disclosed in such documents.
- (3) Not apply criteria or procedures that are not authorized under or pursuant to the Procurement Act (2015).

Evaluation and Selection

- (1) The Procurement Officer shall create a cost evaluation matrix for a comparative analysis to determine the bid at the lowest cost, Best Value for Money (BVFM) and/or most advantageous bid.



- (2) Bid value limit thresholds are specified in the First Schedule in the Second Column of the Regulation
 - a. Bids that are evaluated by Public Procurement Officers have a value limit threshold under the First Schedule in the Regulations .
 - b. Bids that are evaluated by an Evaluation Committee have a value limit threshold under the First Schedule in the Regulation.
- (3) Each procurement activity is evaluated based on technical, past performance, quality, and/or cost-based criteria in compliance with the stated specification(s).
- (4) Bidding documents and an evaluation report are prepared and submitted to the Procurement Committee for endorsement.
- (5) Procurement requisitions endorsed by the Procurement Committee are submitted to the Commissioner of Police and other external bodies for approval.

Responsive Bid

1. The JCF shall consider a bid responsive if it conforms to all requirements set out in the bidding documents.
2. A bid may be regarded as responsive even if it contains:
 - a. Minor deviations that do not materially alter or depart from the characteristics, terms, conditions and other requirements set out in the bidding documents.
 - b. Errors or oversight that can be corrected without materially altering the substance of the bid.

Grounds for Rejection of Bids

- (1) The JCF reserves the right to accept or reject any bid, or to abort the tender process and reject all tenders at any time prior to the award of contract without incurring any liability.
- (2) The JCF shall also reserve the right not to award a contract to any party with whom it is currently in litigation, or with whom it has an unresolved contractual dispute.
- (3) Where the bidder or bid is not in compliance with the provisions of the Act and Regulation.



Circumstances under which all bids may be rejected:

- (1) Where the price of the Lowest Responsive Bid is greater/less than the allowable margin of 15 percent of the Pre-Tender/Comparable Estimate - ***If the price is outside of this range, it may still be accepted, provided that it is validated by the contractor, and the JCF is satisfied.***
- (2) When all the bids received are not responsive to the requirements in the Bidding Documents.
- (3) Where the JCF, after receiving the bids, reasonably concludes that there is lack of competition.
- (4) Where the award of a contract will not be in the best interest of the JCF.

Successful Bids

1. The JCF shall evaluate the bid(s) that:
 - a. Have not been rejected.
 - b. Are responsive to the technical and financial requirements outlined in the bidding document(s).
2. The JCF will determine the successful bid to be:
 - a. Where price is the only award criterion, the bid with the lowest bid price.
 - b. Where there are price and other award criteria, the most advantageous bid is ascertained based on the criteria and procedures for evaluating bids specified in the bidding documents.
3. Notwithstanding that the successful bidder has participated in pre-qualification proceedings, the JCF may require the successful bidder to demonstrate its qualifications again, in accordance with the criteria and procedures set out in the bidding documents.



Cancellation of Procurement

The JCF may cancel a procurement:

1. At any time prior to the acceptance of the successful bid.
2. After the successful bid is accepted, in the circumstances referred to in section 44(1) of the Act
3. The JCF shall not open any bids or proposals after it has taken the decision to cancel a procurement.
4. The JCF shall :
 - a. Include in the records of the procurement proceedings and promptly communicate to the bidders that submit a bid, the decision to cancel the procurement;
 - b. Promptly publish a notice of cancellation of the procurement proceeding in the same manner and place;
 - c. Return all bids or proposal that remains unopened.

Approval of Contract Award

Where the contract price of the successful bid exceeds the relevant procurement contract approval limit (as outlined in the Regulation), the JCF shall not award the procurement contract, in the case of:

- (1) The Tier 3 Limit, without the prior approval of the Commissioner of Police, the Public Procurement Commission, and the Cabinet.
- (2) The Tier 2 Limit, without the prior approval of the Public Procurement Commission and the Commissioner of Police.
- (3) The Tier 1 Limit, without the prior approval of the Commissioner of Police.

Acceptance of Successful Bid

The JCF (subject to section 43 of the Act) shall notify each bidder, in writing, of the determination of the successful Bid and the commencement of the **standstill period**. This shall include:

- a) The name and address of the bidder who presented the successful bid.
- b) The contract price.
- c) The duration of the standstill period as determined in accordance with the bidding documents.
- d) Any other matter as may be prescribed.



Prior to the expiration of the standstill period, the JCF shall:

- a) Not act on its determination to accept the successful bid and execute or perform the procurement contract.
- b) Afford the bidders to whom the standstill notice was dispatched the opportunity to query, apply for reconsideration, or otherwise challenge the decision of the JCF as to which one of the bids qualified to be the successful bid.



SECTION 2

Procurement Planning and Management

Stakeholder Engagement

The procurement planning process initiates at the beginning of each budget planning cycle, typically commencing in September. To kick-start this process, an internal memorandum is sent to all JCF Commanders/Programme Managers. This memorandum requests that operational plans be submitted, including associated resource requirements (specifications) for the upcoming fiscal year. This proactive step ensures that all procurement activities are aligned with operational needs and priorities from the outset.

Costing of Requirements

Upon receipt, operational plans undergo a thorough review by both the Planning, Research and Development Branch (PRDB) and the Corporate and Special Services Branch. This collaborative review aims to conduct a comprehensive corporate needs analysis, determining aggregate demand and ensuring that procurement activities are strategically aligned with the JCF's overarching goals and resource capabilities.

Alignment of Strategic Plans

The alignment process involves several critical steps:

- 1) The PRDB, alongside the Corporate and Special Services Branch and Finance Branch, orchestrates preliminary budget discussions with relevant internal stakeholders. This dialogue is pivotal for ensuring synergy between strategic plans and operational realities.
- 2) Subsequently, a Procurement Plan is meticulously drafted, adhering to a budget ceiling established by the Ministry of Finance and the Public Service, thereby ensuring fiscal discipline and strategic resource allocation.
- 3) The proposed budget, reflective of the Procurement Plan's requirements, is then submitted to Parliament for review and approval, a crucial step in the procurement planning process.



- 4) Following parliamentary approval, a finalized copy of the approved plan must be submitted to the Public Procurement Commission (PPC) by April 30, ensuring transparency and compliance with national procurement guidelines.

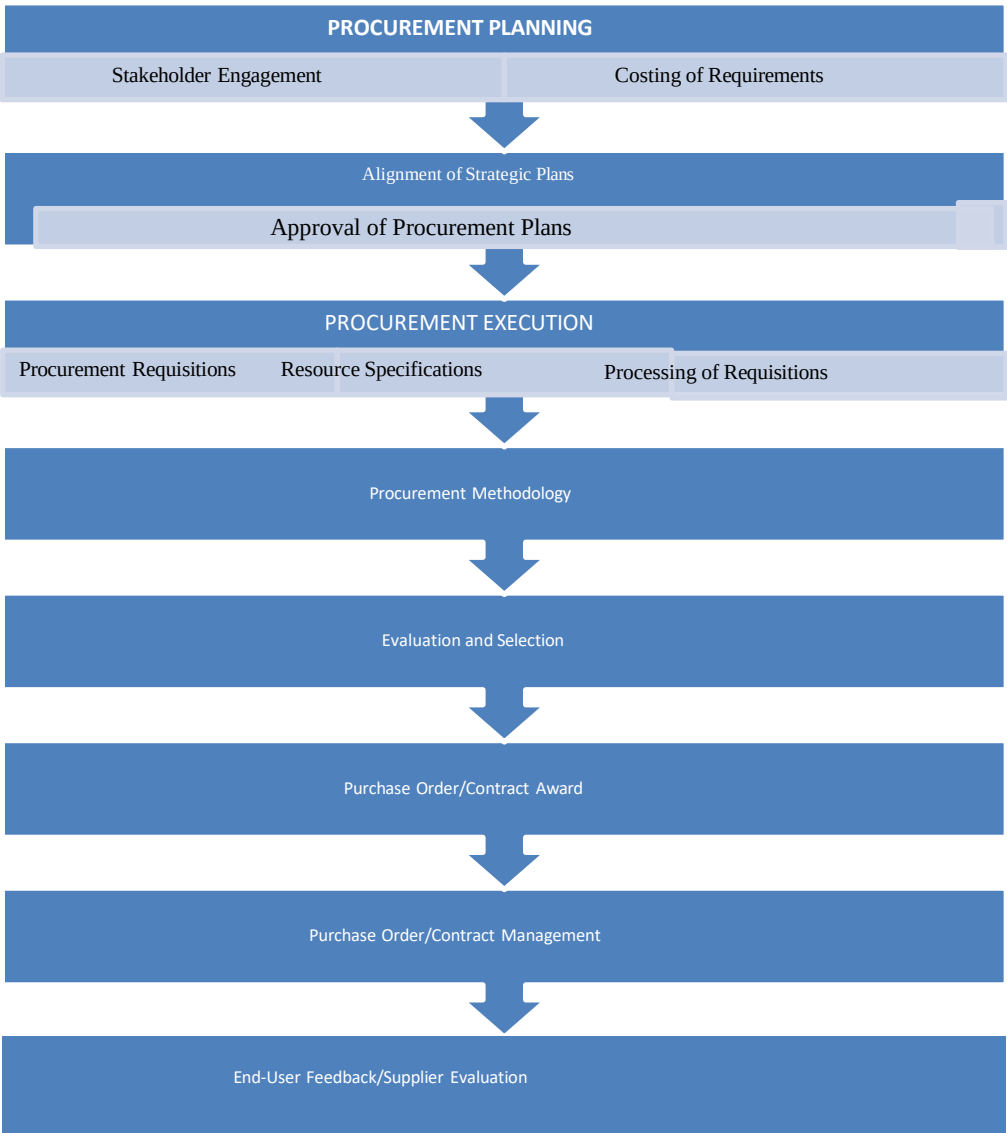
Approval of Procurement Plan

With parliamentary approval of the budget, the final stage involves submitting the Procurement Plan to the Commissioner of Police for endorsement. This approval is not merely procedural; it signifies the JCF's commitment to strategic, efficient and transparent procurement practices, aligning operational procurement activities with the legislative framework and strategic objectives of the JCF.



Procurement Execution

Procurement Process





Procurement Requisitions

1. **Initiating Procurement Activities** - Procurement requisitions and purchase orders constitute the principal methods for initiating all procurement activities within the JCF, apart from those made through the petty cash system.
2. **Usage of Procurement Requisitions** - A Procurement Requisition, whether in electronic or paper format, serves as the formal document through which the procurement of goods, services and works is requested.
3. **Submission Process** - All procurement requisitions must be forwarded through Commanders/Programme Managers to the Office of the Director of Corporate and Special Services for review and processing.
4. **Requisition Tracking** - Each requisition is meticulously logged and tracked using a dedicated procurement requisition tracking system within the Public Procurement Unit to ensure transparency and accountability.
5. **Requisition Requirements** - Every requisition must include at a minimum:
 - A detailed description and specification for each item requested, noting size, color, quantity, etc., while ensuring the specifications are not overly restrictive to allow for competitive bidding.
 - Delivery instructions specifying the required delivery date, delivery location (including division/formation, name of a responsible individual, and room number or Police Headquarters Stores), and any special handling or delivery requirements.
 - An estimated cost for each item.
 - Suggested sources of supply, if available, along with any relevant price information or correspondence related to specialty items.
 - The signature of the Commander/Programme Manager or their authorized representative, emphasizing that the original signature is required, not merely a rubber stamp.



- A stipulation that each requisition should focus on similar or related items likely sourced from the same supplier to streamline procurement and delivery.
6. **Prohibiting Splintering** - Requisitions for equipment, supplies, or services intended as part of a single transaction should be combined into one requisition or a series of related requisitions submitted simultaneously to avoid circumventing bidding requirements through splitting transactions.
 7. **Resource Specification** - Specifications are developed and submitted by the requesting parties prior to the procurement process, subject to review for completeness and clarity.
 8. **Processing of Requisitions** - Requisition adherence to the Approved Procurement Plan is checked by the Director of Public Procurement, Senior Procurement Officer, or an assigned delegate. Procurements included in the approved plan proceed to the procurement process phase, while those not included require confirmation and update of the procurement plan by a DCP (Portfolio Officer).
 9. **Purchase Order Generation and Management** - Purchase orders are prepared based on approved requisitions, utilizing the Government Financial Management System (GFMS) as the primary tool, except in exceptional circumstances where manual orders are necessary. Essential details such as vendor information, item quantities and descriptions, and pricing are included in each purchase order. Upon delivery, goods and services are inspected for discrepancies, which are duly noted and communicated to suppliers. The purchase order will be distributed as follows:

No.	Purchase Order	Description
1	First/Original Copy	Retained by the Procurement Unit. Upon receipt of the supplier's invoice - both documents are submitted to Accounts Payable for payment processing
2	Procurement Copy	Retained by the Procurement Unit for Record Keeping Purposes
3	Vendor Copy	Sent to the requesting division/department and the recommended supplier.

This aforementioned steps ensures a disciplined, transparent and efficient procurement process, adhering to policies and regulations to support the operational effectiveness of the JCF.



Processing of Invoices and Payments

- a. **Inspection and Monitoring** - The end user(s) are directly responsible for inspecting and monitoring the delivery of goods, services and/or works. The Director, Corporate and Special Services may also direct procurement personnel or other subject matter experts to assist with monitoring and inspections as necessary.
- b. **Invoice Submission** - Once the delivery of goods, services or works is completed, the contracted supplier submits the invoice to the Public Procurement Unit along with a certificate of delivery which is signed by the end user or receiving officer.
- c. **Certification and Evaluation** - Upon receipt of the invoice and certificate of delivery, an authorized officer shall certify the final invoice that items were delivered in satisfactory condition. The end user is also required to complete an Evaluation Form rating the supplier's performance and satisfactory delivery of the goods, services and/or works.
- d. **Payment Processing** - After the invoice is certified, the certified invoice, along with a request for payment memorandum and supporting documents, is submitted to the Finance and Accounts Branch for payment.

Requests for Proposals and Bidding Requirements

- (1) Comparative quotes are not mandatory for goods and services with value limit threshold stated in the First Schedule in the Regulation that applies to single source procurement(s) .
- (2) The Divisional Commander/Programme Manager may undertake their own sourcing from approved suppliers listed in the JCF's database and/or the PPC suppliers listing.
- (3) The Public Procurement Unit, however, reserves the right to solicit comparative quotes, if, based on its knowledge of the market, the requested goods and/or services can be obtained at significantly lower prices for comparable quality.
- (4) The acquisition of goods, services and works should be processed in accordance with the requirements of the Act, Regulations and attending circulars issued by the Public Procurement Commission.



- (5) The Procurement Committee, Director of Corporate and Special Services and Director of Public Procurement shall approve such purchases in accordance with the approval limits agreed.

Bidding Procedures

- (1) The Director, Public Procurement is responsible for and shall ensure that all bidding procedures, including the invitation to bid, giving of notice, establishment of criteria for bid evaluation, opening and evaluation of bids received, acceptance of bids and award of contracts comply with the requirements of the Act, Regulations and JCF Policies.
- (2) Public notice of invitations to bid shall be given in accordance with the requirements of the Act, Regulations and JCF Policies.
- (3) An online bid opening report will be available via the “Opened bid details” under the Information section on the GOJEP. This record shall be open to public inspection.
- (4) When it is considered impractical to prepare an initial activity with a description to support an award based on price, an invitation for expression of interest may be issued requesting the submission of unpriced offers. This process will be followed by an invitation for bids, limited to those bidders whose offers have been qualified under the criteria outlined in the first solicitation.
- (5) Award shall be made to the bidder whose proposal is determined in writing to be the most advantageous to the JCF. The most advantageous bid takes into consideration price and the evaluation factors set forth in the request for proposals. No other factors or criteria shall be used in the evaluation. The contract file shall contain the basis on which the award is made.

Exceptions: Procurement without Competition

- (1) **Sole Source** - A contract may be awarded for a supply, service or works item without competitive bidding when there is only one practicable source for the requisitioned item.
- (2) **Emergency Procurement** - When emergency conditions exist that create a threat to: public health, welfare, or safety, procurement without full competition may be authorized by the Commissioner of Police in accordance with the Act and the Regulations.



- i. The use of the emergency contracting methodology must coincide with a sudden, unexpected, and/or pressing need or exigency, whereby the use of a competitive methodology would be impractical because of the time involved.
 - ii. Emergency contracts with values as stated in the Second Schedule of the Regulation must be reported to the Public Procurement Commission within the month in which the award was made, along with full justification for the procurement, which should include a statement as to why the contractor was selected and the value of contract awarded.
 - iii. The Head of the Procuring Entity is permitted to approve contracts valued as stated in the Second Schedule of the Regulation. The approval must be in writing and must form part of the procurement record.
 - iv. For contracts with values as stated in the Second Schedule of the Regulation, endorsement from the Public Procurement Commission and approval from Cabinet are required prior to contract award. Where the contractor is based overseas or is not registered as a supplier in Jamaica, the procuring entity must refer the matter to the Public Procurement Commission for approval.
 - v. Noteworthy, contracts awarded under emergency circumstances must commence immediately or within one month of approval, otherwise same will result in an automatic reversion to the general procurement provisions.
- (3) For these procurements, the Public Procurement Unit shall maintain an official record of all contracts made summarizing with respect to each contract:
- (a) the contractor's name
 - (b) the value and type of the contract
 - (c) the supplies, services, or works procured.
- (4) In addition, the external oversight bodies must be advised in accordance with the Act , and The Regulations.



Contracts and Contractual Terms

- (1) Any contractual term(s) permitted by the Laws of Jamaica may be used for JCF procurement purposes, which will be in the best interests of the JCF.
- (2) A **cost-plus-a-percentage-of-cost** contract is **prohibited** (Cost-plus pricing is also known as markup pricing. It's a pricing method where a fixed percentage is added on top of the cost it takes to produce one unit of a product [unit cost]).

Procurement of Construction Works

- (1) Construction contracts will be entered into with qualified licensed contractors, subject to the provisions of the Regulations. For the purpose of this provision, the term “works” has the same meaning as that of the Act – means the carrying out of any of the following activities, namely,
 - 1) Construction,
 - 2) Reconstruction,
 - 3) Assembly,
 - 4) Altering,
 - 5) Manufacturing,
 - 6) Processing,
 - 7) Fabrication,
 - 8) Erection,
 - 9) Instrumentation,
 - 10) Installation,
 - 11) Fitting Out,
 - 12) Improvement,
 - 13) Commissioning,
 - 14) Demolition,
 - 15) Maintenance,
 - 16) Repair and Renovation Involved with Building,
 - 17) Civil Engineering,
 - 18) Structural Engineering,



- 19) Electrical Engineering,
- 20) Mechanical Engineering and Other Engineering,
- 21) Technology Projects

Direct Procurement from Foreign Suppliers

1. The following shall apply in the case of procurements from foreign suppliers:
 - (1) Imported items may be procured in accordance with the aforementioned through a standard JCF purchase requisition form.
 - (2) The JCF engages the services of a professional customs broker to provide assistance in clearing foreign shipments. All correspondence or contact with this broker must be made through the Corporate and Special Services Branch. The broker engaged must be registered and be of high repute.
 - (3) **All** matters pertaining to Jamaica Customs are handled by the Corporate and Special Services Branch. All documents concerning foreign orders (customs declarations, customs invoices, shipping papers, shipping notices, etc.) must be forwarded to the Corporate and Special Services Branch.
 - (4) Divisions requisitioning import items should include estimated freight charges in estimating the cost of the items requisitioned. Information relating to Jamaica Customs Agency and procedures applicable to customs clearance may be obtained from the Corporate and Special Services Branch.
 - (5) As far as possible, prepayments should be avoided.
 - (6) Brokers must be furnished with all relevant documents for clearance on a timely basis.
 - (7) Import licenses, or permits must be obtained for materials in accordance with the Laws of Jamaica, through the relevant Agency or Ministries.



Exemptions

The Act identifies the following as being exempted and not subject to methods and processes outlined in **Parts III and V** of the said Act:

- 1) goods, works and services donated by the Government of Jamaica to a non-governmental organization under the conditions specified in Part B of this Schedule;
- 2) land or any immovable property or rights in relation thereto;
- 3) works of art, cultural performances, products or services associated with creative expression;
- 4) goods, works and services relating to the staging of productions in support of or associated with creative expression and cultural events, including, but not limited to--
 - a) artistic co-ordination, direction and management;
 - b) the management of artistic works or events;
 - c) the management of intellectual property rights;
 - d) venue rental;
 - e) infrastructure and technical effects;
 - f) design and technical direction of cultural performances;
 - g) the engagement of artistes and performers;
- 5) medical services;
- 6) legal services;
- 7) medallions and insignias for use pursuant to the National Honours and Awards Act;
- 8) **goods, works and services of a sensitive nature for use in or acquisition for the purposes of national defence or national security;**
- 9) travel services and hotel accommodation or facilities;
- 10) contracts for broadcasting time;
- 11) programme material intended for broadcasting by broadcasters;
- 12) goods, works and services under multilateral or bilateral agreements to which Jamaica is a party, or an agreement between Jamaica and an international organization, providing for an alternate system of procurement than that which is provided under this Act;
- 13) educational instruction and training programmes;
- 14) goods, works or services relating or connected with the operations of Jamaican diplomatic missions or consulates;



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15) co-sponsorship arrangements, trade and travel road shows and co- operative advertising.



Acceptable Uses of Electronic Signatures

1. With increased emphasis on paper reduction, there has been renewed interest in fully electronic processing and approvals of documents and workflows.
2. For e-signatures to be acceptable, the following criteria must be met:
 - a. First Name
 - b. Last Name
 - c. Signature Date
 - d. Signature Time
 - e. Audit Trail with Unique Identifier
3. The signature must establish the individual's intent to be bound to the transaction. The signatory must be fully aware of the purpose for which the signature is being provided, regardless of underlying technology.

Policy Framework

The validity and acceptance of an electronic signature rest upon specific actions on the part of the officer making a request that requires a signature and the officer signing the document or correspondence.

User Responsibilities

1. Essentially, signatures are based on authenticating a user, requesters must protect their user login credentials and keep them confidential.
2. If a requester or signer believes that his or her login credentials were stolen or otherwise compromised, the requester/signer must contact the Technology Branch immediately to have the credentials reset.
3. Requester provides appropriate and accurate name(s) and email address(es) of the person(s) that need to provide the electronic signature(s).
4. Signer acknowledges the approval of the request by clicking an approve/continue button or similar method after providing login credentials.



APPENDIX 1: GUIDANCE NOTE - Criteria for the Award of Contracts



Ministry of Finance and the Public Service
Office of Public Procurement Policy

GUIDANCE NOTE

Criteria for the Award of Contracts

This guidance note describes principles and practices related to the establishment and application of Contract Award Criteria.

*Guidance Note
1/2020 (GN 1/20)*



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INTRODUCTION

Scope:

This guidance note describes principles and practices related to the establishment and application of **Contract Award Criteria**.

Definition:

Contract award criteria are those specific considerations upon which a procuring entity will choose the successful bid from amongst the bids that are substantially responsive to the procuring entity's requirements. A bid is substantially responsive if it confirms all the requirements set out in the bidding documents without material deviations or omissions. Contract award criteria enable a procuring entity to compare the relative advantages of different bids. **Contract award criteria are not synonymous with the obligatory requirements set out in the specifications or the criteria for qualification of bidders.**

Interpretation:

In this Guidance Note, all words are given the meaning imputed by Section 2 of The Public Procurement Act 2015 (as amended) herein referred to as "The Act".

Context:

In order to identify the best possible contracting partner, procuring entities must evaluate the information provided in bids, together with important characteristics of bidders, according to criteria that are set out in the bidding documents.

In Jamaica's public procurement law, the various criteria for evaluation are:

1. Eligibility - Which allow a supplier to participate in public procurement only if the supplier is compliant with all of its obligations in relation to taxes and where required, is duly



registered with the Public Procurement Commission (Ref Section 15 of the Act and Regulation 17 of the Public Procurement Regulations 2018 “the Regulations);

2. Qualification - Which are set to ensure that in view of the possible procurement and contract risks, only bids from bidders that demonstrate at least minimum capability in terms of existing technical and financial attributes are considered (Ref Regulation 18 of the Regulations);
3. Disqualification and Exclusion - Which are mandatory bases on which a procuring entity must not consider a bidder for contract award (Ref Section 42 of the Act and Regulation 19 of the Regulations);
4. Specifications- Which define the subject matter of the contract. The specifications go to the heart of the contract, and the contractor must perform according to those specifications.
5. Contract award criteria (Ref Section 38 of the Act).

LAW AND COMPLIANCE

The Law:

Section 38(2) of The Public Procurement Act 2015 provides that having determined that a bid is responsive, a procuring entity may determine the successful bid on the basis that the bid is **either**:-

- i. The lowest price- where price is the only criterion; **or**
- ii. The most advantageous bid- where the procuring entity may consider criteria in addition to, or other than price.

Contract award criteria must meet the underlying principles and objectives of public procurement and must be set in advance and disclosed in the bidding documents in a manner that:-

- i. All reasonably well informed and normally diligent bidders may clearly understand the nature and extent of information they ought to include in the bid so that the



procuring entity may be convinced that the bid is the best and should be deemed successful;

- ii. The procuring entity may evaluate bids reliably and systematically;
- iii. Review and approval authorities such as Cabinet, The Public Procurement Commission, The Integrity Commission, The Auditor General etc. are able to monitor the process and ensure that award decisions do not involve discrimination or dishonesty; and
- iv. Ensures the widest possible competition and is neither discriminatory nor prejudicial to suppliers.

How to comply: Prior to instituting procurement proceedings, procuring entities should determine which contract award criterion is best for the particular procurement.

Lowest Price Awards

Procuring entities should award contracts to the lowest priced offer when it is determined that value for money may be achieved by considering only acquisition price or “up front” costs. Normally, awarding a contract on the basis of price alone is appropriate when-

- Contract requirements are well defined, standardized or simple.
- In the estimation of the procuring entity, there is low risk of poor performance of the contractor.
- The procuring entity would receive no additional value by consideration of factors that are not related to price.

In choosing to award contracts on the basis of lowest price, procuring entities must be aware of the following limitations:

- **The procuring entity must not take into account qualitative considerations apart from those factors that are built into the specifications**
- **The procuring entity cannot take into account innovative solutions beyond any innovation that was specified, as only price is considered**



- For contracts whose subject matter may have a long operating life, the procuring entity cannot consider total operating costs, life-cycle costs or any other cost factor beyond the initial purchase price.

Lowest price awards are therefore likely to be most effective when contract requirements can be clearly and comprehensively set out, and there is need for swift contracting. See the below example of how this criterion may be applied.

Example 1: Applying the “Lowest Price” Criterion

Case 1- ABZ Limited (“the procuring entity”), a government owned company in Jamaica, intends to procure three hundred (300) laptops for general office use. In its bidding document, the procuring entity has disclosed that the contract will be awarded on the basis of the lowest price as below:

F. Award of Contract	
ITB 44.1	The procuring entity will award the contract to the responsive bidder that has offered the lowest price.

*Note that in keeping with the principle of transparency and best practice, procuring entities are required to place this information in the bidding documents, and in particular the bidding data sheet and/or other places which provide **specific information** about the contract opportunity.*

The procuring entity instituted procurement proceedings by way of the “National Competitive Bidding” method. At the close of tender, the procuring entity received three bids.

All three bids were substantially responsive to the procuring entity’s request, as all three bidders were eligible, qualified, and submitted documentary evidence that the laptops conformed to the specifications set out. The bids were then ranked as follows:

Table 1- Ranking of bids



	Bidder A	Bidder B	Bidder C
Bid Price	J\$45,500,000.00	J\$45,502,500	J\$51,102,000
Rank	1	2	3

ABZ Limited therefore deemed the bid from Bidder A the successful bid, and sought approval for Contract Award to Bidder A on the basis that Bidder A's bid was responsive and offered the lowest price. ABZ's recommendation was supported by the Public Procurement Commission.

Awarding the Most Advantageous Bid (MAB)

Procuring entities should award contracts on the basis that the bid is the most advantageous when the procuring entity's determination of value for money cannot be limited to price only, but must include additional considerations. This system of award allows the procuring entity to determine which of the submitted bids promises the most advantages, based on considerations of **price and quality**. Quality considerations are normally important when:-

- Contract requirements are complex or novel.
- The contract is one for services that are primarily intellectual in nature (such as consulting services), and owing to the complexity of the services, it is desirable to place greater emphasis on a bidder's superior characteristics, rather than focus on price only;
- Having regard to the market for the subject matter of the procurement, or the need for innovative solutions, or otherwise, it is desirable for suppliers to offer multiple additional benefits than stipulated in the specifications.
- There is a need to account for subjective considerations such as aesthetics or appearance.
- The procuring entity needs to consider the whole costs of maintaining, operating or disposing of the subject matter of the contract.
- The procuring entity may require quicker turnaround or delivery time or after sales support.
- Environmental or social aspects of bids may vary and a procuring entity desires the best possible outcome in relation to these matters.



In choosing to award contracts on the basis of most advantageous tender, procuring entities must be aware of the following limitations:

- **Criteria must not be chosen for any purpose except to identify the most advantageous tender.**
- **The criteria must not be discriminatory. That means that all criteria must be relevant to the subject matter of the procurement and not arbitrarily set.**
- **The criteria must be set in a manner that adherence to them can be objectively assessed.**

Criteria for MAB

The criteria for most advantageous bid may take account of any of the below. This list is taken from the procurement directives of the European Union, and is illustrative only. The criteria that may be considered are:-

Costs, such as total ownership costs, or lifecycle costs

- quality, including technical merit;
- aesthetic and functional characteristics;
- accessibility;
- design for all users;
- social, environmental and innovative characteristics;
- trading and its conditions;
- organisation, qualification and experience of staff assigned to perform the contract where the quality of the staff assigned can have a significant impact on the level of performance of the contract;
- after-sales service and technical assistance;
- Delivery conditions, such as delivery date, delivery process and delivery period or period of completion.

Procuring entities are free to consider criteria other than those listed above in order to determine the most advantageous tender, having regard to the procuring entity's circumstances.



Important practical considerations when using MAB

1. To ensure that the contract award criteria are not discriminatory, procuring entities are expected to select award criteria that match the contract specifications. Therefore, the preparation of specifications and the selection of award criteria should be done at the same time, and after thorough consideration of the features of the subject matter of the procurement that are most important to the procuring entity.
2. Procuring entities should specify the weight it places on each criterion for contract award. In doing this, bidders are immediately advised of the relative importance of each criterion, and may decide which trade-offs they will pursue in order to earn the contract. Additionally, deciding on, and disclosing the relative weight of each criterion ensures that the procuring entity does not make arbitrary decisions during the process of evaluation of tenders. Weighting can be done by various routes, including points, percentages or other qualitative expressions tied to fixed considerations. For example, excellent- where the bid demonstrates xyz, above average –where the bid demonstrates x and y and average where the bid demonstrates x only.
3. Practically, procuring entities should take either of the following approaches to the detailed evaluation and contract award stage:-
 - a. Fix the minimum mandatory specifications that must be met by all bidders, and then evaluate all tenders on a pass/fail basis. Thereafter, and in accordance with the award criteria set out, apply scores to all bids that have passed the minimum requirements. These scores would naturally reflect the degree to which a bid exceeds the basic requirements and the most advantageous of these would be the bid with the highest score/points;
 - b. Without fixing minimum mandatory specifications, the procuring entity may score all bids on the basis of their level of compliance with the requirements set out. The scores would be allotted to the technical and commercial requirements on a scale that demonstrates the relative benefit of one proposal over the other. The bid amassing the highest points, once responsive, would naturally be the most advantageous bid; or



- c. Where the procuring entity will determine the most advantageous bid on the basis of cost or economic aspects, without qualitative aspects, the procuring entity must publish a worksheet that requires bidders to indicate their best prices for the cost factors associated with maintaining or owning the subject matter of the procurement. The most advantageous bid would naturally be that bid which demonstrates lowest costs over a period of time, or lowest costs related to the maintenance of the subject matter of the procurement.

Example 2- Applying the “Most Advantageous Bid” Criterion

Case 2- ABZ Limited (“the procuring entity”), a government owned company in Jamaica, intends to procure three (3) specialised IT servers for certain control room computers used in its nuclear energy station. In preparing for this procurement, the Managing Director indicated the need to ensure that these servers were the most energy efficient servers within budget, given the intended application.

He would be willing to approve a slightly higher spend in order to obtain the advantages of energy efficiency, but he would not be willing to obtain these advantages regardless of the price. He also indicated that ABZ needs the servers urgently in order to complete the commissioning of the control room, and he did not want to wait for more than ten (10) days. From the procuring entity’s market research, it was discovered that delivery turnaround of these servers varied quite widely, but most firms could deliver in twelve (12) days.

Some of the best firms could deliver within 1-5 days of contract award- though these earlier deliveries meant an increase in price.

All of these objectives suggested the importance of considering factors apart from the price, in identifying the most successful bid.

In its bidding document, the procuring entity therefore disclosed that the contract will be awarded on the basis of the “most advantageous bid”:



F. Award of Contract	
ITB 44.1	The procuring entity will award the contract to the responsive bidder that has submitted the most advantageous bid. The most advantageous bid will be determined by the application of the criteria for contract award set out in Section III.

*Note that in keeping with the principle of transparency and best practice, procuring entities are required to place this information in the bidding documents, and in particular the bidding data sheet and/or other places which provide **specific information** about the contract opportunity.*

In Section III, the bidding documents disclosed that all specifications labelled “mandatory” must be met by the bidder, and only those bidders that passed the technical specifications would be considered for contract award. It further disclosed in Section III that the most advantageous bid will be the bid obtaining the highest score computed as follows:

Description	Criterion	Score (Range)	Weighting (%)	Documentary Requirement
	Non-price- N			
The procuring entity desires to obtain the servers urgently. Please propose the earliest possible delivery	i. Delivery-		10	Suppliers must propose delivery date on Form A- “Form of Bid”
	1-10 days after contract award	10		
	11-15 days after award	8		
Server efficiency on the basis of the SPECpower_ssj2008 methodology	Greater than 15 days	3	30	Suppliers must provide SPECpower information clearly indicating the average active power at the requested loads (SPECpower= Σ ssj_ops / Σ power)
	ii. Server Server energy efficiency			
	Average active power between 10-15 Watts at 300 load	30		
	Average active power between 16-20 Watts at 300 load	25		



Description	Criterion	Score (Range)	Weighting (%)	Documentary Requirement
	Non-price- N			
	Average active power between 21-25 Watts at 300 load	15		
Ratio of idle power to maximum power at 100% workload on the basis of SPECpower 100%/SPECpowerIdle comparison	iii. Idle power ratio		20	Suppliers must provide power consumption figures for SPECpower100% and SPECpowerIdle
	1:40k:1 or lower	20		
	1:42k:1-1:50k:1	15		
	1:52k:1-1:60k:1	5		
Σnon-price			60	

Description	Criterion	Score (Formula)	Weighting (%)	Documentary Requirement
	Price- P			
The procuring entity desires to obtain the servers at the best price in consideration of all required criteria		Lowest responsive bid receives 40	40	Suppliers must propose price on Form A- "Form of Bid"
		All other bids:		
		P= Clow/C x X where		
		C= Corrected Bid Price		
		C low= the lowest of all Corrected Bid Prices among responsive bids		
		X = weight for the Price as specified in the BDS		



The total overall score would be calculated by the formula:

$$T = N + P$$

The procuring entity instituted procurement proceedings by way of the “National Competitive Bidding” method. At the close of tender, the procuring entity received three bids. All three bids were substantially responsive to the procuring entity’s request, as all three bidders were eligible, qualified, and submitted documentary evidence that the servers conformed to the mandatory specifications set out. A summary of the evaluation was then prepared and is shown below:

Table 1- Price Score

	Bidder A	Bidder B	Bidder C
Bid Price	J\$145,500,000.00	J\$151,102,000	J\$152,610,000
Price Score (P)	40	38.5	38.1

Table 2- Non Price Score

	Bidder A	Bidder B	Bidder C
Delivery	12 days- 8 points	8 days- 10 points	3 days- 10 points
Server Efficiency	Active Power- 16 Watts- 25 points	Active Power- 11 Watts- 30 points	Active Power- 11 Watts- 30 points
Idle Power Ratio	1:38k:1- 20 points	1:346k:1- 15 points	1:38k:1- 20 points
Non Price Score (N)	53	55	60

Table 3- Total Score

	Bidder A	Bidder B	Bidder C
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T	93	93.5	98.1
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ABZ Limited therefore deemed the bid from Bidder C the successful bid, as it was the bid with the highest score. It was also qualitatively the most advantageous, since it promised the quickest possible delivery, and earned maximum points for the energy efficiency aspects.

The procuring entity therefore sought approval for Contract Award to Bidder C on the basis that Bidder C's bid was responsive and was the most advantageous, in accordance with the criteria that were published. ABZ's recommendation was supported by the Public Procurement Commission.

Changing criteria for contract award:

Procuring entities are advised that a choice of award criteria must be made at the time of instituting the procurement proceedings. This choice, together with the manner of computation must be disclosed. **A procuring entity MUST NOT alter or modify the award criteria, nor their associated relative weighting after bids have been received.**

However, a procuring entity may make alterations or modifications to award criteria prior to the receipt of bids. **All such alterations or modifications MUST be communicated to all suppliers prior to the deadline for receipt of bids.**

FURTHER INFORMATION AND GUIDANCE:

For further information, procuring entities are encouraged to contact the Office of Public Procurement Policy in the Ministry of Finance and the Public Service by sending an e-mail to:

opppcustomercare@mof.gov.jm or by calling 1-876-932-5264



JAMAICA CONSTABULARY FORCE

PROCUREMENT COMMITTEE CHARTER

Revised January 2021

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Procurement Committee Charter

1. BACKGROUND

- 1.1 The Jamaica Constabulary Force (JCF) was established in 1865 in response to the need for the maintenance of law and order in the public interest. The JCF is a Department under the Ministry of National Security (MNS) which utilizes resources of Government together with appropriate legislative powers.
- 1.2 The mandate of the JCF is the maintenance of law and order, the prevention and detection of crime, the investigation of alleged crimes, the protection of life and property and the enforcement of all criminal laws as defined by the Jamaican penal code. This mandate is accomplished through its mission to fulfill its role as the nation's Police Service by effectively and efficiently carrying out its mission to serve, protect and reassure with courtesy, integrity and respect for the rights of all. This, in addition to assigning and managing its resources, so as to ensure the economic viability of the JCF, sustainable national development and the best quality of life for the citizens of Jamaica.

2. OBJECTIVES

- 2.1. The Procurement Committee for the JCF was constituted in 2003.
- 2.2. The members of the Procurement Committee will be appointed by the Head of Entity (Commissioner of Police) to serve for a term of three (3) years.
- 2.3. The Procurement Committee will support the Head of Entity in fulfilling his/her oversight responsibilities. The Procurement Committee will review the procurement process; including tendering, evaluation, contract award and reporting mechanisms for monitoring compliance with relevant laws and regulations; and the JCF code of business conduct.
- 2.4. In performing its duties, the Procurement Committee will maintain effective working relationships with the Ministry of National Security.



3. AUTHORITY

3.1. The Commissioner of Police authorizes the Procurement Committee, within the scope of its responsibilities, to seek and obtain any information it requires from:

- the Procurement Unit.
- any procurement practitioner or technical officer employed to the JCF. All employees are directed to co-operate with any request made by the Procurement Committee.
- external parties, *inter alia*, the Ministry of Finance and Public Service, the Public Procurement Commission, and the Integrity Commission.
- other professional advice as appropriate.

4. ORGANISATION

4.1. Membership

4.1.1. The Procurement Committee will comprise no less than five (5) and no more than ten (10) members as indicated below:

- Chairperson;
- Senior Financial Management Personnel;
- Senior Procurement Personnel;
- A maximum of six (6) appropriately qualified Officers;
- Committee Secretary.

Note:

- *Neither the Senior Procurement Personnel nor the Committee Secretary will have the authority to vote.*



- *A member who is requesting the approval of procurement shall not vote in that approval process.*
- *Members of the Evaluation Committee will not have a vote at the Procurement Committee considering that particular procurement.*
- *Internal Audit personnel must not sit on the Procurement Committee.*

4.1.2. Procurement Committee members shall be appointed by the Commissioner of Police

4.1.3. Each member should be capable of making a valuable contribution to the Committee.

4.1.4. Each member has a fiduciary responsibility to demonstrate due professional care and proficiency at all times.

4.1.5. The Commissioner of Police will appoint the Chairperson of the Committee who must be trained and proficient in the entire GOJ procurement process.

4.1.6. The Deputy Chairperson of the Committee will be such person as nominated by the Procurement Committee and appointed by the Commissioner of Police.

4.1.7. The Secretary of the Procurement Committee will be such person provided by the Procurement Unit.

4.1.8. Members will be required to serve for a term of three (3) years and may be reappointed for another term by the Commissioner of Police. However, there must be at least a one-year break between any further tenure of such members.

4.1.9. Members wishing to resign should give one (1) months' notice in writing to the Chairperson of the Procurement Committee and the Head of Entity.

4.1.10. A Procurement Committee member may be dismissed by the Commissioner of Police due to:

- failure to attend four (4) consecutive meetings without a valid reason.
- lack of independence/conflict of interest/failure to declare interest; and
- any other reason that the Commissioner of Police may deem to be just and credible.



5. MEETINGS

- 5.1. Meetings shall be held at least once per month. Special meetings may be convened as required by the Chairperson.
- 5.2. A quorum for any meeting will be two-third (2/3) voting members.
- 5.3. The duration of the meetings should allow adequate discussion of the matters.
- 5.4. Tender Evaluation Reports and any other submissions should be circulated to the Procurement Committee members and invitees must also be notified at least three (3) working days before the proposed meeting date.
- 5.5. The proceedings of all meetings will be documented and will be circulated to the Commissioner of Police within three (3) weeks after the sitting of the Procurement Committee along with recommendations for contract awards.
- 5.6. The Procurement Committee may invite other technical persons, as it deems necessary, to attend its meetings and provide pertinent information.
- 5.7. The Director of Public Procurement or the Procurement Manager should attend Committee meetings to make presentations as appropriate.

6. FUNCTIONS AND RESPONSIBILITIES

6.1. Endorsement Threshold

- 6.2. The Procurement Committee shall receive and review submissions from the Procurement Unit, and make recommendations to the Head of Entity for award of contracts as set out in **Section 22 of the Public Procurement Act, 2015.**

6.3. Mandate

- 6.3.1. Review recommendations for award of contracts/procurements.



- 6.3.2. Ensure compliance with relevant public sector procurement policies, guidelines and procedures.
- 6.3.3. Review evaluations done by Evaluation Committees.
- 6.3.4. Facilitate response to contractor inquiries.
- 6.3.5. Maintain proper records of Committee meetings, including records of the recommended procurements.
- 6.3.6. Ensure compliance with standard reporting obligations.
- 6.3.7. Make recommendation to the Commissioner of Police on procurements.

6.4. Compliance with Laws, Regulations and Procedures

- 6.4.1. Members should be aware of the terms of:
 - The Financial Administration and Audit Act and Instructions;
 - The Contractor-General's Act;
 - The Contractor-General's Act (Public Sector Procurement Regulations, 2008);
 - Public Bodies Management & Accountability Act;
 - The Corruption Prevention Act; and
 - The Contractor's Levy Act.
- 6.4.2. Members should be aware of the Government of Jamaica Public Sector Procurement Policy, the Government of Jamaica Handbook of Public Sector Procurement Procedures, the Public Procurement Act 2015 and the Public Procurement Regulations 2018.

6.5. Reporting Responsibilities

- 6.5.1. Regularly report to the Commissioner of Police about the Committee's activities and make the appropriate recommendations.
- 6.5.2. Ensure that the JCF's reporting obligations are met, with respect to reports to be submitted to:
 - The Ministry of Finance and Public Service – PRS1 Reports



- Integrity Commission – QCA Reports
- Public Procurement Commission – Emergency Contracting
- Cabinet Office – Cabinet Decision Update
- Board Update (where applicable)

6.5.3. The Procurement Unit will provide a monthly update on reports submitted as per above.

6.6. Other Responsibilities

6.6.1. Perform other activities related to this Charter as requested by the Head of Entity.

6.6.2. Review the adequacy of the Charter every two (2) years or as dictated by changes in legislation and obtain approval of changes from the Head of Entity.

Agreed and signed by: -

Committee Member:

Head of the Procuring Entity:

Name:

Name:

Signature:

Signature:

Date:

Date:
